

Introduction

Latin America is not the same place it once was. Turn the clock back to the previous century's Cold War, and you behold a region under the grip of dictatorship, suffering at the hands of anti-communist, military autocrats who had no regard for individual liberties, political rights, or rule of law. Military zones replaced congressional districts, and officers became governors and mayors. Thousands were sent to their graves in the name of national security and defense of Western Judeo-Christian values against the Marxist-Leninist "menace."

At the tail end of that Cold War, regime change had commenced, but the nascent democracies still found themselves struggling to get out from under the weight of military influence. Generals were leaving office but clinging to whatever vestiges of corporate power they could wield. Still accustomed to rattling their sabers, they would occasionally threaten newly installed democratic leaders should they not get what they want. Democracies may have been reborn, but they were fragile and unstable.

Today, in the second decade of the twenty-first century, threats have greatly diminished, as have the risk of coups. The military does seem to be more compliant, willing to acclimate itself to the realities of democratic rule. Less it be periodically called upon to lend a hand in crime suppression, disaster relief, or peacekeeping abroad, the military is mostly confined to the barracks and kept off the front pages of newspapers. Governments, no longer anxious about what the armed forces might or might not do, turn their attention to the more pressing matters of the day. Democratic rule in many parts of Latin America seems more settled than it has been in generations.

In this more relaxed environment it is easy to forget that none of these historical turns was inevitable, nor has progress been smooth. Civil-military relations have followed an uneven, often winding or zigzagging course, featuring regime transitions, difficult political decisions and reversals, policy blunders, unforeseen military reactions, shifting public opinion, and long periods of inertia, not to mention forces well beyond the control of the principal actors. After all, civil-military transformations do not occur in isolation; they exist within and are shaped by the larger democratic system of which they are a part. Democracy's own progress (or lack thereof), and its capacity to consolidate its gains (or not), has had and will have a bearing on whether relations between soldiers, politicians, and civilians improve, stagnate, or decay.

In this calmer climate, when civil-military relations often slip below the radar, it is also easy to forget that there is plenty of unfinished business to attend to. The armed forces have not gone away, nor have they been shorn of all their political influence. They will defend their interests and weigh in on important defense and security decisions where they can and feel they must. Moreover, the fact that the military poses no immediate threat to democratic governance masks serious underlying problems in civil-military affairs. For one, civilian leaders, who should be stepping up to assume real leadership on defense, security, and military affairs, often fail to do so, opting instead to sidestep the issues, put off decisions, or defer to the judgments of senior officers. Politics abhors a vacuum, and uniformed personnel will fill it if others will not.

For another, the public seems rather nonchalant about military and defense issues, too eager to put these issues out of its mind, so long as the military is not misbehaving. The "no coup, no problem" mentality is pervasive in the region, fostering a lack of attention on the part of voters and ultimately on the part of politicians who represent them. As a result, civil-military relations gain no electoral traction, which means vital reforms to military courts, industries, missions, and academies, along with much-needed changes to strengthen defense ministries, national security councils, and congressional defense commissions, get postponed, sometimes indefinitely.

Politicians and policymakers alike must reform the military to the point that it unconditionally accepts its subordinate position within the democratic state, fulfills the missions assigned to it, and fits comfortably within a democratic society. But they must also reawaken their own interest in defense and military affairs if they are to effectively govern.

And somehow, society at large must also be shaken from its slumber so that defense and military affairs become subjects of renewed public curiosity.

As evident as these realities may be, they are not fully understood. This book is dedicated to examining what is a complex set of relations between soldiers, politicians, and civilians. It does so on the premise that understanding those three “players” and their relations is the key to understanding how a military, which once had been at the center of political power, can be irreversibly transformed into an administrative instrument at the service of a democratic state and society. What does that process look like, and how would we know progress when we saw it? Those are the central questions driving this research.

It is now widely acknowledged that states attempting to consolidate their democratic gains, following periods of military-authoritarian rule, must have in place strategies for transforming their militaries from political predators into compliant partners willing to commit their resources and talents to whatever policy priorities are set by elected governments. The survival, development, and quality of democratic systems depend on governments making the armed forces their political servants rather than the other way around. It doesn’t take long to discover that scholars agree on these general goals even if they disagree on virtually everything else. Studies on military intervention, coup prevention, civilian control strategies, and various aspects of civil-military affairs are plentiful. A perusal of some 60 research articles published between 1990 and 2015 in the field’s lead journal, *Armed Forces & Society*, all with *civil-military relations* and/or *civilian control* in their titles, indicates sustained interest in these subjects. Nearly all who wrote on reborn or new democracies were preoccupied with the challenges of arresting harmful military conduct, building control strategies, and governing the defense sector effectively.

With this interest has come an even greater proliferation of specific issues and perspectives. There does not seem to be an intellectual center of gravity pulling these research endeavors toward substantive, conceptual, or theoretical common ground. Civil-military scholars pursue the questions from many angles, perhaps too many. Referring back to the articles from *Armed Forces & Society*, the following is an incomplete inventory of the approaches taken: doctrinal influences, discourse analyses, legal analyses, political economy (military-economic relations), military culture, military-elite convergence, defense sector institutional designs, informal venues for civil-military interactions, external

influences on domestic civil-military affairs, and principal-agent relations. Both the subject matter and the analytical approaches to those subjects vary. While there is some convergence between authors, there is not nearly enough to discern any dominant patterns or trends.

Intellectual pluralism is to be applauded, yet the difficulty is that the research results don't add up. Too often, scholars ensconce themselves in a niche and, like the blind men who touch different parts of the elephant, cannot agree as to what the mammal actually looks like. Each grasps a partial truth, but no one "sees" the whole beast. The result is an accumulation of disparate, sometimes complementary, oftentimes colliding partial analyses at the expense of a more integrated perspective.

Hence, we might be forgiven for broaching the topic one more time, with the conviction that it would be worthwhile to explore a more holistic approach to the challenge of military transformation, one that attempts to weave together some of the intellectual strands. Our point of departure is to broaden the focus to consider several angles at once. We will push back a few steps to contemplate what the entire complex of civil-military relations looks like, what are its component parts, how those parts interact, how that system develops over time, and how that development impacts on the more narrowly gauged issue of reforming the military so that it compliantly services the democratic state.

Toward those goals, this book engages in several important analytical and empirical exercises. The first is to argue that any assessment of military reform be tied to democratization itself. The reason is straight forward enough; the survival and ultimate viability of the democratic system hinge on transforming the military from a praetorian actor to an instrument of policy. As David R. Mares and Rafael Martínez have put it in a recent volume, the question to be answered is:

... when [can we] truly assert that the armed forces in any country, which have at some time exercised military power in the framework of limited pluralism of an authoritarian regime, have become democratically consolidated and been transformed into a military administration?¹

The military must be made to fit comfortably into the designs of a democratic regime lest it remain a thorn in the side of policymakers

¹ David Mares and Rafael Martínez, eds. *Debating Civil-Military Relations in Latin America* (Great Britain: Sussex Academic Press, 2014), 8.

and the regime itself. Of all those actors capable of derailing or reversing a democratic building process, the armed forces have long been the most formidable. While many actors could become disruptive, we needn't be reminded that only militaries coup. So, democratizers need to deal with the military as a potential threat early on, especially during a transitional phase, when conditions are sufficiently unstable to place the regime in existential peril. Reform strategies at this stage are designed to mitigate harm through a mix of carrots and sticks, all in an effort to counter military praetorian tendencies.

By the same token, the nature and scope of that threat change as the democracy moves through developmental phases. During a consolidating phase, the opportunities for coercive military intervention narrow as more actors on the civilian side coalesce around the regime and its leaders.² Actors loyal to the system begin to outnumber those who are disloyal; the regime begins to earn credibility with the public as the system becomes increasingly more competitive, representational, and accountable; and accordingly, political elites can more easily forge a united coalition in defense of democratic practice against any praetorian impulses within the military. Control is still uppermost on the minds of political leaders, but what were once existential threats are now more manageable, as the scope of military influence narrows to fewer sectors and becomes less coercive. The military is not oriented toward regime overthrow but rather preoccupied with retaining some influence while protecting its institutional well-being.

The process evolves to later stages of consolidation where political leadership thinks less about containing the military and more about harnessing its power for productive use. How may democratic leaders better manage the armed forces in order to govern in the realms of national security and defense? This resembles a shift from what Andrew Cottey et al. describe as first-generational concerns with political control to second-generational concerns with strengthening state capacity so that policymaking is more effective.³ The military evolves as well, from peril to promising instrument that can be used by civilians to advance foreign policy objectives. Nothing is inevitable about this process; assorted

² See Felipe Agüero, *Soldiers, Civilians and Democracy: Post-Franco Spain in Comparative Perspective* (Baltimore: Johns Hopkins University Press, 1995).

³ Andrew Cottey, Timothy Edmunds, and Anthony Forster, "The Second Generation Problematic: Rethinking Democracy and Civil-Military Relations," *Armed Forces & Society*, 29, 1 (Fall 2002), 7–30.

obstacles can emerge, not the least of which is the policymaker's unpreparedness to utilize the military instrument in desirable ways. But whether successful or not, the evolution should, we insist, be understood as an interaction between an evolving military and a democratic state passing from one stage to the next.

The book's second task is to embed the discussion of military reform within a larger framework of civil-military relations, or, from here on in, CMR. As it will be argued, getting military reform right means getting CMR right. One could be legitimately excused for thinking that the study of the military and the study of CMR were one and the same. So many volumes and articles devoted to CMR are in fact deliberating more specifically about the military organization. There is a military-centric thrust to much of the literature that confines itself to analyses of the institution of the armed forces – its structure, ideology, recruitment patterns, professional traits, political roles, corporate interests, and interventionist impulses, to name a few. When relational aspects are analyzed, they are most often linear – restricted to discussions on the interaction between armed forces personnel and government officials. That comes at the expense of the broader, triangular relations between the soldiers, politicians, and society.⁴

Every nation has to, at some point in its history, come to grips with achieving a more enduring harmony between government, the armed forces, and society. The Prussian theorist Carl von Clausewitz (1780–1831) referred to this as the “Great Trinity,” the essential ingredient to fighting successful wars.⁵ Wars could only be won if there was a nexus between public passions, policy rational, and battlefield prowess. But in peacetime, once the passion for war has quieted, connections between soldiers, politicians, and civilians still matter, and especially for democracies. Political theorists have contended that there should be an alignment between a government's military policy, the military itself, and societal interests. Crises in civil-military are unlikely to develop “so long as the military is representative of the people,” and policy choices reflect citizens' expectations, as conveyed through their representatives.⁶ This is

⁴ Narcís Serra urges scholars to progress from the linear to the triangular view of CMR. See *The Military Transition: Democratic Reform of the Armed Forces* (Cambridge: Cambridge University Press, 2010), 43–44.

⁵ Carl Von Clausewitz, *On War* [Edited and translated by Michael Howard and Peter Paret] (Princeton: Princeton University Press, 1976).

⁶ James Burk, “The Logic of Crisis and Civil-Military Relations Theory: A Comment on Desch, Feaver, and Dauber,” *Armed Forces & Society*, 24, 3 (Spring 1998), 458.

a point of view originally put forth by the sociologist Morris Janowitz, who claimed that armies would adopt features of society, mirroring its attitudinal, occupational, and professional traits.⁷ Janowitz's view is one that Samuel Huntington and his disciples would take some issue with. They might say that, indeed, a tri-partite harmony is important, but it is one that civilian elites should cultivate by aligning their views with the military institution, which has the appropriate conservative mind-set and is already held in high regard by the public.⁸

Whatever the ultimate impetus may be behind the convergence – whether it derives from society, the government, or the military – many scholars can probably agree that if discord rather than harmony prevails in this three-sided relation, it could pose problems for effective governance, and particularly for less developed, consolidating democracies. Why is that so? An answer to that question helps reveal why an analysis of military reform should be embedded within a critique of CMR.

Consider the military-societal leg of this triad. An unreformed military can be troublesome when it does not live by the same set of rules as does society. Believing himself to be a member of a privileged caste, the officer refuses to abide by the laws everyone else adheres to. Holding himself aloft from the public, he is convinced that there are double standards: those pertaining to his military caste and those pertaining to the rest. With that view in mind, it was not too surprising to see some officers in Latin America refusing to appear in court when subpoenaed on charges of human rights abuses. Resistance to judicial proceedings is just one of the obstacles standing in the way of a reformed military. Soldiers have to be reminded they are citizens first, subject to the laws of the land.

Reminders are needed because soldiers reside in the barracks. If for no other reason, it is easy for them to distance themselves from the society that surrounds them because they are physically walled off. Minimal contact breeds unfamiliarity with societal culture, interests, and trends. But society is not blameless for this breach. Too often citizens do not bother trying to comprehend the military or show little interest in defense affairs. That condition is made worse by the global movement toward

⁷ Morris Janowitz, *The Professional Soldier: A Social and Political Portrait* (New York: The Free Press, 1960), 417–40.

⁸ On this debate, see Peter D. Feaver and Richard H. Kohn, eds. *Soldiers and Civilians: The Civil-Military Gap and American National Security* (Cambridge, MA: MIT Press, 2001), 5.

volunteer forces, as fewer and fewer families have any direct contact with those who self-select into the services. Combined, all of these elements can produce a civil-military gap where the two sides misunderstand each other, do not know or trust each other, and express divergent values and attitudes.⁹

As a result, there are also widespread deficits in public knowledge of and attention to military-related topics, a reality not specific to just the Latin American Southern Cone subregion to be investigated in this book. That in turn negatively impacts the second leg of the triad, the relation between society and government. When the public deems the military and defense to be subjects unworthy of its attention, it is sending a message to its representatives. Voters who do not prioritize defense will fail to reward politicians for doing so. With so many other, more electorally weighty issues on his agenda, it is all too easy for the politician to place defense and military issues on the back burner.¹⁰

That then affects the third leg of the triad, the relation between government and the armed forces. When political leaders do not pay sufficient attention to defense, they leave a policymaking void, and it becomes all too tempting for officers to fill that void with their own policy prescriptions – ones that are not always compatible with the requisites of a pluralistic society and a democratically inspired foreign policy. If that occurs, the military is no longer a policy instrument but rather an advocate. And with that, the democratic government has relinquished its obligation to design the nation's defense strategies and policies. In fact, it has abdicated its role to govern military and defense affairs. If the military is to be a policy instrument, then by definition, political elites and their appointees must lead. They must pay sufficient attention to defense-related subjects to be able to formulate the policies they have asked the military to execute.

Political leaders within a war-making superpower like the United States need few reminders about the importance of prioritizing defense. Neither do leaders of less powerful states in strategically vulnerable regions (e.g. Israel, India, Pakistan, or South Korea). But for leaders of

⁹ Ibid.

¹⁰ Voter and politician apathy about defense does vary from subregion to subregion depending on threat environments and civilian employment opportunities in the defense sector. See David Pion-Berlin and Harold Trinkunas, "Attention Deficits: Why Politicians Ignore Defense Policy in Latin America," *Latin American Research Review* 42, 3 (Fall 2007), 76–100.

less powerful nations that are at peace and situated within more stable security environments – like those under review in this book – it is much harder to emphasize defense, absent significant electoral incentives to do so.

That brings us full circle. If the military is to be transformed so that it is democratically compatible and compliant, neither it, the political class, nor civilians can be let off the hook. Either they are all part of the problem or they are part of the solution. Undoubtedly, there are other relational circuits within such a system that can be explored.¹¹ But any effort to understand military reform must take a few steps back to contemplate interconnections in this three-sided system, whatever they may be. It is not just the armed forces that must be democratized; it is CMR as a whole.

CMR is far more complex than simply three sides of a triangle. It is a multidimensional system, and one that is not static; it changes over time. If, as we have argued, it is important to the fate of military reform, then there must be a means by which to assess its dimensions and transformations. What are these? How do we know if CMR are improving, namely moving in a direction compatible with a consolidating democracy? That is the third analytical and empirical challenge to be taken up in the chapters that follow. The difficulty is that studies of CMR in Latin America have not established any standards with which to measure progress, comparing one country against another. There are no comparative multi-nation studies on the quality of CMR. This stands in stark contrast to studies of democracy in the same region, where scholars have devised metrics with which to judge the levels of competition, freedom, representation, government performance, and accountability.¹²

¹¹ For example, in a contrasting scenario, citizens may suffer from an irrational exuberance about the military. Overly confident about the utility of warfare as a policy tool, they press politicians to place the military atop of the political agenda in the wrong situations. This reaction, like the others, can arise from ignorance, when the public fundamentally misunderstands how the armed forces fit into the complexities of foreign policymaking.

¹² For example, see Larry Diamond and Leonardo Molino, *Assessing the Quality of Democracy* (Baltimore: Johns Hopkins University Press, 2005); Scott Mainwaring, Timothy R. Scully, and Jorge V. Cullell, “Measuring Success in Democratic Governance,” in Scott Mainwaring and Timothy R. Scully (eds.), *Democratic Governance in Latin America* (Stanford, CA: Stanford University Press, 2010), 11–51; Daniel H. Levine and José E. Molina, *The Quality of Democracy in Latin America* (Boulder: Lynne Rienner, 2011).

The first step in measurement is to divide CMR into dimensions that are conceptual containers used to bundle together common features of CMR. The dimensions relate to power, law, institutions, knowledge, values, and performance. Each of these is a window into CMR that provides a partial view; combined they comprise a more complete vision. Dimensions have their own components, and it is developments within each that are measured in ordinal fashion, from no progress to substantial.

Progress for each country's CMR is tracked according to metrics based on evaluative standards that have become widely accepted within the civil-military literature. Drawing upon an accumulation of country-specific experiences, scholars can and have reached an adequate level of consensus about desirable goals. For purposes of illustration, consider the issue of political power. Few dispute the importance of reducing military autonomy by stripping it of its self-bestowed rights to determine the selection of executive leaders, to control internal security, or to try its own officers for human rights offenses in military courts. Those objectives will be the guideposts to evaluate change in the chapter on military power. On building institutions, there is also broad agreement not only that defense ministries are vital instruments for policy direction but that they should be in the chain of command, serve the president's objectives, and be led by well-trained, politically appointed civilians. Those aspirations are our benchmarks for success and will be the subject of appraisal in Chapter 5. Similarly, non-controversial standards have been designated for the other dimensions. We've taken care to devise benchmarks that are reasonable but also demanding. Countries can conceivably achieve them all, but not without concerted effort.

The final exercise considers those historical, political, and economic factors that might influence the course of CMR development. Some of these emerge from the regional security environment, some reach back to the period of authoritarian rule and the transitions that unfolded thereafter, while others emerge later and have something to do with the ideological predispositions of ruling parties and the personal experiences of executive leaders.

THE REST OF THE BOOK

This book is organized thematically, according to the elements that comprise the civil-military relation. Chapter 1 explains the framework

that has been devised for assessing CMR, how it evolves over time, and its relation to the larger democratic system of which it is a part. Chapter 2 provides a contextual overview for the four countries under study: Argentina, Brazil, Chile, and Uruguay. It traces civil-military developments from the vantage point of successive governments, briefly explaining what executive leaders did and did not accomplish with respect to military reform and how CMR were shaped by the politics of the time.

Following Chapter 2, the next six chapters are dedicated to analyzing the dimensions that define CMR, with evidence gathered from Argentina, Brazil, Chile, and Uruguay. Power is at the heart of politics, and nowhere is it more central than in CMR. Chapter 3 appraises civilian efforts to alter the balance of power in their favor. Politicians must reduce military autonomy and decision-making latitude while carving out policy niches for themselves in the areas of public policy, human rights, internal security, and external defense. As will all the chapters, this one assesses differences in rates of progress across those issue domains.

The conflict over power and its resolution is captured in the laws that democracies devise. While governments progress by altering the balance of power, they must solidify those gains legally so what had been negotiated or fought over is rendered more permanent. Chapter 4 examines constitutions, security and defense statutes, military organizational laws, military justice laws, and legal states of exception, comparing the statutes across the four countries, with respect to how compatible they are with a democratizing CMR.

Chapter 5 analyzes institution-building within the defense sphere. Institutions are the vehicles with which power balances and law can be translated into preferred, stable patterns of conduct. This chapter discusses what roles key defense-related organizations play, how they are structured, and whether they facilitate civilian control while at the same time permitting the informed views of officers to filter up. Those organizations to be analyzed are ministries of defense, national security and defense councils, military joint staffs, and congressional defense commissions.

Institutions shape patterns of conduct, but it is people who make policy. Even if defense ministries are structurally well designed, they must be occupied by civilians with sufficient expertise to run them. Chapter 6 assesses to what extent civilians have been educationally prepared to enter the world of defense. The military meanwhile does not

have knowledge deficits about defense affairs. Where military academies have fallen short in the past has been to cultivate a broader mind-set, one that is supportive of democratic norms and civilian control. Thus the chapter also investigates the military side of the equation to see whether or not the cadets' educational experiences have become less insular and more sensitized to the world beyond the barracks.

Chapter 7 focuses on convergence, the phenomenon where soldiers and civilians come to better respect each other while embracing core democratic values and practices. Civil society has to pay greater heed to the military's unique contributions to national well-being, while the military in turn should adapt to society's values and aspirations. Generally, a good military is one that to some extent mirrors the democratic society it emerges from, whether it be its gender profile, its access to health and welfare benefits, or its economic standing. Whether there is a closer military-societal fit or not will be examined here.

Chapter 8 appraises effectiveness, or how well civilians and soldiers alike rise to the occasion when asked to formulate and execute policy. We take stock of effectiveness from a multitude of angles so as to be able to answer some fundamental questions. Is there a coherent, strategic plan in place, or are defense and military decisions made in an ad hoc manner? Do policy objectives make sense in light of a nation's security environment and its domestic priorities? If so, are military missions, size, and expenditures properly aligned with those objectives? And are policy processes transparent enough so that they can be properly controlled and evaluated?

Finally, Chapter 9 addresses causal agents that may account for changes in CMR over time and across countries. It concludes by suggesting lessons for scholars of other regions that could be drawn from this study.